

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: July 9, 2026

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1.	United Auto Credit Corporation v. All Credit Car Sales LLC 25-1529116	Before the court is an unopposed motion filed by attorneys at Adli Law Group, P.C. ("Attorneys"), requesting to be relieved as counsel of record for defendant All Credit Car Sales LLC ("Client"). The motion is tentatively GRANTED. Attorneys have largely complied with the requirements of <i>California Rule of Court 3.1362</i>, and filed and served forms MC-051 and MC-052

		on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. However, Attorneys failed to file the requisite form MC-053, which is the order granting the requested relief. Upon filing form MC-053, the court will GRANT the motion. The court notes the order relieving counsel shall not be effective until Attorneys file with the court a proof of service showing the signed orders (specifically form MC-053) granting the motion have been served on Client. Until such time, Attorneys shall remain counsel of record. <i>Attorneys are ordered to give notice of this ruling.</i>
2.	Yoon v. Ross Stores, Inc. 26-1538080	Before the court is an unopposed motion filed by attorneys at BL Law Group APC ("Attorneys"), requesting to be relieved as counsel of record for plaintiff All Jung Ho Yoon ("Client"). The motion is DENIED without prejudice. Pursuant to <i>California Rule of Court 3.1362</i>, an attorney seeking to be relieved as counsel must file and serve forms MC-051, MC-052, and MC-053. Although Attorneys filed and served forms MC-051 and MC-052, Attorneys failed to file and serve form MC-053. Additionally, forms MC-051 and MC-052 are incomplete. For form MC-051, Attorneys failed to complete section 2(b) and 4. For form MC-052, Attorneys failed to complete sections 3 – 7. The motion is denied without prejudice to Attorneys properly filling out the requisite sections and filing and serving all three forms on Plaintiff and the other parties who have appeared in this action. <i>Attorneys are ordered to give notice of this ruling.</i>
3.	Landgren v. Green Living 23-1305159	The motion of plaintiffs Douglas Landgren, Monique Landgren, and Brett Ivey move for leave to file a proposed first amended complaint is GRANTED. Plaintiffs are to file the original first amended complaint as a separate filing and serve a copy within 5 Court days. Discussion Plaintiffs move for leave to to file a proposed first amended complaint, a copy of which is attached to the motion as Exhibit A. Defendant Shai Ades does not oppose the filing of the proposed first amended complaint but asks that any order granting leave be conditioned on requiring plaintiffs to appear for deposition on dates certain and producing all documents requested in the deposition notices. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. <i>Code Civ. Proc. § 473(a)(1)</i>. If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration

		containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841. A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. <i>CRC 3.1324(a)</i>. In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. <i>CRC 3.1324(b)</i>. Plaintiffs have substantially complied with the requirements of <i>Rule 3.1324</i>. They seek to amend their initial complaint by adding two new causes of action against the individual defendant, who was added through a Doe amendment filed in June 2025. In the declaration filed with the moving papers, plaintiffs' counsel declares that, during the course of the litigation, he learned that the individual defendant dissolved co-defendant Green Living based on fraudulent representations that it had no claims or liabilities against it. To the extent that defense counsel, who previously represented Green Living and now only represents the individual defendant, contends that plaintiffs have not complied with their discovery obligations, defense counsel has remedies for such non-compliance in the Code. In addition, any prejudice to the individual defendant caused by permitting the amendment and the need to conduct additional discovery can be remedied by a continuance of the trial date. <i>Moving party to give notice.</i>
4.	Jarol v. Chehabi 25-1525670	Plaintiff Sherwin Jarol's Motion for leave to file a First Amended Complaint is GRANTED. The Motion complies with the form requirements of <i>CRC 3.1324</i>. No objection based upon non-compliance with the Rul1 has been raised. The Court has considered defendant Chehabi's objections to granting leave to amend and concludes they are without merit. A review of the parties' papers shows no delay plaintiff or his counsel. Indeed, they show that when defendant's counsel had the opportunity to move things along he didn't. Argument concerning the merits of the new COAs will not be considered to defeat a motion for leave to amend. [See; <i>Atkinson v. Elk Corp.</i> (2003) 109 CA4th 739, 760, 135 CR2d 433, 448 —"the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"] Finally, defendant Chehabi as not shown any legally cognizable prejudice.

		Plaintiff is ordered to file a clean version of the First Amended Complaint forthwith. Service is to be per Code. <i>Moving party is to give notice.</i>
5.	Delatorre v. Smith 25-14980567	Plaintiff Emily Betsabeth Delatorre's ("Plaintiff") Motion for Consolidation is CONTINUED. Plaintiff requests to consolidate this matter with OCSC Case No. 2026-01540797-CU-PA-CJC. In the present matter there is a motion to compel arbitration set for 08/13/26. The determination of whether the present Plaintiff should be compelled to participate in contractual arbitration would impact whether the two matters should be consolidated given the plaintiffs in the other matter do not appear to be covered by an arbitration agreement related to the underlying subject motor vehicle incident. The court continues the hearing on the present motion to 09/03/26. <i>The court will give notice.</i>
6.		<i>(off calendar)</i>
7.	Gibson Holdings, LLC v. Pure RapsCALLION, Inc. 24-1382	Before the court is an Order to Show Cause Re: Why Unrepresented Corporation Pure RapsCALLION, Inc.'s Answer Should Not Be Struck ("OSC"), which was issued on 06/04/26. On 10/02/25, the court granted Pure RapsCALLION, Inc.' ("RPI") former counsel Clark Hill LLP's motion to be relieved as counsel for RPI. (ROA 268.) Over the approximately nine months and one week since that hearing, RPI has not been represented by counsel or filed substitution of counsel. RPI was served notice of the OSC but did not file any responsive pleading or substitute in a new attorney. (ROA 334, 338.) "A court on its own motion may '[s]trike out any irrelevant, false, or improper matter inserted in any pleading' and '[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.' (<i>Code Civ.Proc.</i>, § 436.)" (<i>Greshko v. Cnty. of Los Angeles</i> (1987) 194 Cal. App. 3d 822, 830.) A corporate entity cannot participate in a lawsuit on a pro per basis and must be represented by an attorney licensed in California, RPI's lack of representation prohibits it from further participating in this lawsuit. (<i>Gutierrez v. G & M Oil Co., Inc.</i> (2010) 184 Cal.App.4th 551, 564.) As RPI has not been represented for an extended period, has not substituted in new counsel, and has not responded to the OSC, the court hereby strike's RPI's answer. (ROA 28, 36.) The court directs plaintiff Gibson Holdings, LLC ("Plaintiff") to file a request for entry of default and request for default judgment against RPI within the next 10-days. <i>Plaintiff to give notice.</i>

8.	Ventura v. American Honda Motor Company 23-1370487	(No tentative)
9.	Woods v. General Motors, LLC 24-1427229	Before the Court is a motion by defendant General Motors, LLC (GM) to tax the memorandum of costs filed by plaintiff Scott Henry Woods. The motion is GRANTED in part and DENIED in part, as set forth herein. The Court notes initially that while plaintiff correctly points out that the motion does not contain a separate notice of motion, the Court does not find any prejudice as a result of this procedural defect. The Court will therefore consider the merits of the motion and plaintiff's comprehensive opposition thereto. (<i>Reedy v. Bussell</i> (2007) 148 Cal. App. 4th 1272, 1289 - "In order to obtain a reversal based upon such a procedural flaw, the appellant must demonstrate not only that the notice was defective, but that he or she was prejudiced.") In a Song-Beverly action, "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (<i>Civ. Code § 1794, subd. (d).</i>) Indeed, "[i]n a claim under the Song-Beverly Act, a prevailing plaintiff is entitled to recover costs and expenses (<i>Civ. Code, § 1794, subd. (d)</i>); for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in <i>Code of Civil Procedure section 1033.5</i>." (<i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457; see <i>Warren v. Kia Motors of America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43.) Here, GM does not dispute plaintiff's entitlement to costs under the Song Beverly Act but instead disputes the propriety of certain charges. Filing and Motion Fees: The \$60 filing fee for the attorney's fees motion is improper because at the time of filing the memorandum of costs, the fee had not been incurred. Therefore, Court will GRANT and tax the \$60 filing fee. Jury Fees: These are appropriate costs and therefore the motion is DENIED as to jury fees. Deposition Costs: Plaintiff states the deposition charge was for the deposition of "GM's PMQ Luis Sandoval on August 8, 2025" and a corresponding invoice is attached as Exhibit 4. (Rotman Decl. at ¶7) This is a recoverable cost and therefore the motion is DENIED as to deposition costs. Service of Process: The charges for serving a third-party witness is a recoverable cost. Therefore, the motion is DENIED as to service of process charges. Ordinary Witness and Expert Fees: Plaintiff seeks recovery of \$6,586.53 in costs charged by Anthony Micale. This charge is for

plaintiff's expert conducting a vehicle inspection. Although expert fees are not allowed as set forth in *CCP §1033.5(b)(2)*, the allowable costs under the Song Beverly act are broader. *Civil Code section 1794, subdivision (d)* permits recovery of "costs and expenses." (*Civ. Code, § 1794, subd. (d).*) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189].) Per *Jensen*, the intent of the Legislature in allowing "costs and expenses" was to permit "such out-of-pocket expenses as filing fees, expert witness fees, marshall's fees, etc." (*Id.* at p. 138.)

Notwithstanding the foregoing, only costs that are reasonably incurred are recoverable. Here, there is insufficient information provided to allow the Court to determine that all of the charges were reasonable. For example, there is no information about Mr. Micale's background or why it was necessary to hire an expert from Solvang such that several thousand dollars of travel time, mileage and hotel charges would be reasonable. Based on the Court's review of the evidence submitted and the Court's familiarity with expert charges in similar cases, the Court finds \$1,975 to be reasonable and therefore **GRANTS** the motion and will tax \$4,611.53.

GM's motion to strike the \$15 witness fee paid to the Tustin dealership is **DENIED**.

Court Reporter Fees: The \$625 stated on the memorandum of costs is for Court Reporter fees associated with the Motion for Attorney Fees which had not been incurred at the time of filing the Memorandum of Costs. As the charges have not been incurred, the motion is **GRANTED** and the court will tax \$625.

Fees for Electronic Filing or Service: The electronic service fees are directly addressed within *Code of Civil Procedure section 1033.5, subdivision (a)(14)*, which states that "[f]ees for the electronic filing or service of documents through an electronic filing service provider" are recoverable "if a court requires or orders electronic filing or service of documents." However, in the opposition, plaintiff concedes that \$9.20 should be taxed. Therefore, the motion is partially **GRANTED** and the Court will tax \$9.20.

Other Costs: The Court does not find plaintiff's charges for meals, toll road chages or research to be recoverable costs. Therefore, the motion is partially **GRANTED** and the Court will tax \$87.52. However, the motion is **DENIED** as to charges for the mediation and copies of Minute Orders.

In summary, the motion is **GRANTED**, in part, and the plaintiff's memorandum of costs is taxed in the total amount of \$5,393.25. This leaves a total allowed costs in the amount of \$6,457.50.

GM is ordered to give notice.

10.	MedLab20230, Inc. v. UHC of California 25-1506621	The general demurrers of defendants UHC of California, dba UnitedHealthcare of California, UnitedHealthcare Benefits Plan of California, Inc., UnitedHealthcare Life Insurance Company, UnitedHealthcare Insurance Company, and UnitedHealthcare Insurance Company of America demur generally to all eight causes of action in the first amended complaint of plaintiff MediLab 2020, Inc., are SUSTAINED with 30 days' leave to amend. Defendants' request for judicial notice is DENIED. Plaintiff opposes the demurrer and objects to the request for judicial notice filed by defendants with their demurrer. Through its FAC, plaintiff seeks full reimbursement by defendants for COVID testing it provided to defendants' members even though it was not within defendants' network. Plaintiff contends that, despite federal and state legislation and regulations, defendants did not fully pay the claims and eventually enacted policies to pay for the testing at a rate less than required by law. Its first amended complaint (ROA 53) contains causes of action for: (1) violation of Bus. & Prof. Code § 17200; (2) breach of contract implied in fact; (3) breach of contract implied in law (quantum meruit); (4) breach of the covenant of good faith and fair dealing; (5) goods and services rendered; (6) money had and received; (7) open book account; and (8) account stated. In the last sentence of the eighth cause of action, plaintiff alleges that defendants owe plaintiff "an amount not less than \$50,947,362.26, plus penalties and interest." (FAC, ¶ 142.) In addition to challenging the sufficiency of the allegations in each of the causes of action, defendants contend that plaintiff's claims are untimely as not brought within two years of rendering the underlying services. They also contend that the claims are preempted by the Employee Retirement Income Security Act ("ERISA"). Defendants ask for judicial notice of three documents: (1) a first amended complaint filed in OCSC case no. 2025-01457824 (Exhibit A); (2) a proclamation by the Governor of California dated February 28, 2023 (Exhibit B); and (3) a document issued by the U.S. Department of Health and Human Services stating that the federal public health emergency for COVID expired on May 11, 2023 (Exhibit C). (See ROA 69.) Plaintiff has objected to defendants' request, contending that defendants submitted Exhibit A to "color this Court's assessment of MedLab's credibility in adjudicating [defendants'] demurrer, and that Exhibits B and C are "print-outs from unknown sources" that purportedly identify the dates that the state and federal COVID emergencies were terminated." Although the Court may take judicial notice of documents pertinent to issues raised by a demurrer, none of the documents submitted by defendants are particularly relevant. Moreover, Exhibit A is not a court record, <i>i.e.</i>, a judgment, statement of decision, or order; it is a pleading filed by third parties in another case.
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First cause of action for violation of *Bus. & Prof. Code § 17200*. This enactment prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1247. The UCL covers a wide range of conduct and embraces anything that can properly be called a business practice and at the same time is forbidden by law. *Ibid.*

Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent. *Aton Center, Inc. v. United Healthcare Ins. Co., supra*, 93 Cal.App.5th at p. 1248. An act can be alleged to violate any or all of the three prongs of the UCL—unlawful, unfair, or fraudulent. *Ibid.* However, the remedies available for violation of the UCL are limited, *i.e.*, only equitable remedies can be obtained and damages cannot be recovered. *Ibid.*

Here, plaintiff alleges in the first cause of action that “[d]efendants improperly denied payment, failed to pay, and underpaid claims submitted by [plaintiff] for COVID-19 Testing and Related Services, in violation of the FFCRA, the CARES Act, and SB 510.” (FAC, ¶ 87.) However, it does not allege that these statutes required defendants to pay a specific price for the COVID testing performed by non-network providers like itself. Instead, it alleges that defendants were required to pay both in-network and out-of-network providers amounts that were “reasonable, and determined in comparison to prevailing market rates for testing items or service in the geographic region where the item or services is rendered.” (FAC, ¶ 28; see also ¶ 84.) Plaintiff further alleges that, at all times, it “reasonably expected to be compensated for these services rendered to Defendants’ members, pursuant to the pricing guidance stated in federal and state law.” (FAC, ¶ 48.)

Despite these allegations, plaintiff has not shown that defendants violated the state and federal laws cited. In addition, plaintiff purports to seek restitution, but it really seeks damages, as shown by the allegation that “[a]s a result of Defendants’ actions, MedLab has not been compensated and/or has been undercompensated for claims submitted by MedLab to Defendants.” (FAC, ¶ 91.) It also alleges that it “has a vested interest in a quantifiable sum, representing amounts not paid to MedLab for claims submitted to Defendants for COVID-19 Testing and Related Services provided to Defendants’ members as required by state and federal law.” (FAC, ¶ 92.)

The demurrer to the first cause of action is **SUSTAINED** with leave to amend.

Second cause of action for breach of contract implied in fact. The vital elements of a cause of action based on contract are mutual assent, which is usually accomplished through the medium of an offer and acceptance, and consideration. *Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan* (2022) 80 Cal.App.5th 794, 808. As to the basic elements, there is no difference between an express and implied contract. *Ibid.* While an express contract is defined as one, the terms

of which are stated in words, an implied contract is an agreement, the existence and terms of which are manifested by conduct. *Ibid*.

Both express and implied contracts are identical in that they require a meeting of the minds or an agreement. *Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan, supra*, 280 Cal.App.5th at p. 808. Thus, both the express contract and the contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established. *Ibid*.

A claim for breach of an implied-in-fact contract requires a plaintiff to plead the agreed-upon rate. *Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan, supra*, 280 Cal.App.5th at p. 808. Otherwise, the allegations amount to a claim for *quantum meruit* in which the plaintiff seeks to recover the shortfall in the amount of reimbursement based on the belief that the rate at which they were paid is below the reasonable and customary value of the services they provided. *Ibid*.

Here, plaintiff alleges throughout the FAC that it is an "out-of-network" provider of services to defendants' members. See, e.g., paragraphs 47 and 80. Plaintiff alleges that, as an out-of-network provider of services, it "did not have a specifically negotiated rate with Defendants for COVID-19 Testing and Related Services." (FAC, ¶ 80.) And the allegations in the second cause of action do not contain any facts showing that the parties agreed on a specific price for reimbursement. In fact, plaintiff alleges that defendants "were aware" that plaintiff expected to be paid "reasonable charges for [its] services within a reasonable time of [plaintiff's] submissions of such claims to Defendants for such services." (FAC, ¶ 97.)

The demurrer to the second cause of action is **SUSTAINED** with leave to amend.

Third cause of action for breach of contract implied in law (*quantum merit*). This legal theory refers to the well-established principle that the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered. *Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 180. The requisite elements of *quantum meruit* are (1) the plaintiff acted pursuant to "an explicit or implicit request for the services" by the defendant, and (2) the services conferred a benefit on the defendant. *Ibid*.

To recover under a theory of *quantum meruit*, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for such services from the defendant and that the services rendered were intended to and did benefit the defendant. *Nissanoff. v. UnitedHealthcare Ins. Co.* (2024) 108 Cal.App.5th Supp.1, 12. The theory of quasi-contractual recovery is that one party has accepted and retained a benefit with full appreciation of the facts, under circumstances making it inequitable for him or her to retain the benefit

without payment of its reasonable value. *Ibid*. When the services are rendered by the plaintiff to a third person, the courts have required that there be a specific request therefor from the defendant. *Ibid*.

Defendants contend that this cause of action is defective because plaintiff does not allege that defendants – as opposed to their members – requested the services it provided. They also contend that plaintiff does not allege facts showing that defendants – as opposed to their members – were the direct beneficiaries of the treatment or services.

In fact, plaintiff alleges in the third cause of action that the testing services benefitted both defendants and their members. (FAC, ¶ 109.) Plaintiff then alleges that defendants “impliedly requested the services ... by their continued operation and voluntary assumption of statutory duties, by their processing conduct (including full and partial payment to MedLab), by their communications with MedLab, and by their request for more information from MedLab.” (FAC, ¶ 112.) Plaintiff alleges that defendants’ payment in full of certain COVID claims for testing and services “also constituted an implied request for MedLab to perform such services and to continue performing such services for Defendants’ members and confirmed that Defendants benefited from the services that MedLab performed.” (FAC, ¶ 114.)

These allegations do *not* show that defendants requested a benefit from plaintiff. Even if testing was a benefit to defendants, the allegations show that any acquiescence to treatment (and payment) on its part came after the fact.

The demurrer to the third cause of action is **SUSTAINED** with leave to amend.

Fourth cause of action for breach of the covenant of good faith and fair dealing. A breach of the covenant of good faith and fair dealing does not give rise to a cause of action separate from a cause of action for breach of the contract containing the covenant. *Smith v. International Brotherhood of Electrical Workers* (2003) 109 Cal.App.4th 1637, 1644, fn. 3.

Plaintiff has not sufficiently alleged either an express or implied contract and its cause of action for breach of the implied covenant of good faith and fair dealing therefore fails.

The demurrer to the fourth cause of action is **SUSTAINED** with leave to amend.

Fifth, sixth, seventh, and eight causes of action for common count claims of goods and services rendered, money had and received, open book account, and account stated, respectively. A common count is not a specific cause of action; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. *Avidor v. Sutter’s Place* (2013)

212 Cal.App.4th 1439, 1454. Although such an action is one at law, it is governed by principles of equity. *Ibid*.

A common count alleges in substance that the defendant became indebted to the plaintiff in a certain stated sum, for some consideration such as "money had and received by the defendant for the use of the plaintiff," or "for goods, wares and merchandise sold and delivered by plaintiff to defendant," or "for work and labor performed by plaintiff"; and that no part of the sum has been paid. 4 Witkin, *Cal. Proc.* (6th ed. 2026), Pleading § 565. Although other matters are often included, the cases make it clear that the only essential allegations are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment. 4 Witkin, *Cal. Proc.* (6th ed. 2026), Pleading § 565.

A common count is proper whenever the plaintiff claims a sum of money due, either as an indebtedness in a sum certain, or for the reasonable value of services or goods furnished. It makes no difference that the proof shows the original transaction to be an express contract, a contract implied in fact, or a quasi-contract. 4 Witkin, *Cal. Proc.* (6th ed. 2026), Pleading § 562.

Defendants contend that the common count causes of action fail because they are duplicative of plaintiff's implied contract claim and because plaintiff fails to sufficiently allege the necessary elements of the claims.

Here, in the fifth cause of action for goods and services rendered, plaintiff alleges that plaintiff performed the COVID testing and related services under defendants' implied request. (FAC, ¶ 127.) However, as previously discussed, plaintiff has not alleged facts showing that defendant requested the testing for its services.

In the sixth cause of action for money had and received, plaintiff alleges that defendants "through payments made by their insureds, received money that was intended, in part, to be used for the benefit of and which belonged to [plaintiff] an out-of-network health care provider that provided COVID-19 Testing and Related Services to Defendants' insureds under the compulsion of urgent and pressing necessity." (FAC, ¶ 131.) Plaintiff alleges that "[t]he money received by Defendants was not paid to or used for the benefit of [plaintiff] as Defendants' members understood and intended." (FAC, ¶ 132.) Plaintiff has not alleged any facts supporting these conclusions.

In the seventh cause of action for open book account, plaintiff alleges that it and defendants had financial transactions with each other involving payment for health care services performed by plaintiff for the benefit of defendants and their insureds. (FAC, ¶ 135.) Plaintiff alleges that it, in the regular course of business, kept an electronic account of the debits and credits involved the financial transactions between the parties. (FAC, ¶ 136.) Again, plaintiff has not alleged any facts supporting these conclusions.

		In the eighth cause of action for account stated, plaintiff alleges that defendants owe money from previous financial transactions involving payment for health care services performed by plaintiff for the benefit of defendants and their members. (FAC, ¶ 139.) Plaintiff alleges that defendants, through their words and conduct, agreed that the amount plaintiff claimed to be due from defendants was the correct amount owed for each claim for testing. (FAC, ¶ 141.) Again, these conclusions are not supported by the allegations in the FAC. The demurrers to the fifth, sixth, seventh, and eighth causes of action are SUSTAINED with leave to amend. <i>Demurring parties to give notice.</i>
11.	Boren v. Manly, Stewart & Finaldi 25-1524761	(Off calendar)
12.	Pope v. Hyundai Motor America 25-1471444	Although there are deficiencies in Hyundai Motor America's ["HMA"] Notice of Motion for Judgment on the Pleadings, the Court construes the Motion to be one for judgment on the pleadings as to each and all causes of action of the Complaint. On that basis, the Motion is DENIED. Reading the Complaint liberally, as the Court must, plaintiff alleges two types of claims. One type is violations of <i>Civil Code</i> §1793.2 in connection with the alleged breach of contractual warranty obligations entered into by HMA. The other type is a claim that plaintiff was fraudulently induced to agree to the purchase her vehicle by fraudulent concealment of facts about its condition. Hereafter, the first type of claim will be called "the contract claims." The second type will be called "the tort claim." With respect to the contract claims, HMA makes two arguments. The first is that the claims are barred by the statute of limitations. This argument is unavailing. The statute of limitations is not an element of a cause of action. [<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807] It is an affirmative defense upon which HMA has the burden of proof. [See, <i>CACI 338</i>; <i>CACI 454</i>] In the context of this motion, HMA has the initial burden to identify the applicable SOLs. Dates alleged in a complaint may show a cause of action is barred by the statute of limitations. [<i>Iverson, Yoakum, Papiano & Hatch v. Berwald</i> (1999) 76 CA4th 990, 995, 90 CR2d 665, 669] However, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint might be time-barred. [<i>Stueve Bros. Farms, LLC v. Berger Kahni</i> (2013) 222 Cal.App. 4th 303, 313] Given the absence of both dates alleged in the Complaint and identification of specific statutes of limitations, the clear and affirmative standard has not been met. The second argument is that plaintiff has not met the enhanced standard for pleading statutory claims. HMA cites cases standing for the proposition that that allegations that do not meet the enhanced pleading

		standard are uncertain under <i>CCP §430.10(f)</i>. The subdivision does not permit a motion for judgment on the pleadings on the grounds of uncertainty. [<i>CCP §438(c)(1)(B)(1)</i> and (2)] This argument is not addressed further. With respect to the tort claims, HMA also makes two arguments. One is that the “economic loss rule” bars plaintiff’s claims for fraud. The other is that the claims for do not allege facts sufficient to constitute a cause of action. Under the holding in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 838, the economic loss rule does not apply to claims for fraudulent inducement caused by fraudulent concealment. Tort damages are permitted in a contract case where the contract is fraudulently induced. [<i>Id.</i> at pp. 839-840, citing <i>Robinson Helicopter Co., Inc v. Dana Corporation</i> (2004) 34 Cal.4th 979, 990] On facts similar to the ones alleged here, the economic loss rule was held not to be applicable to fraud claims. As to the sufficiency of the facts alleged here, the Court has reviewed the facts of this Complaint to the ones described in <i>Dhital</i>. The <i>Dhital</i> court found the allegations similar to the one here to be sufficient. As such, the Court comes to the same conclusion here. <i>Moving party to give notice.</i>
13.	Bush v. California Cemetery and Funeral Services, LLC 24-1438792	Before the Court is a motion for summary judgment or in the alternative, summary adjudication filed by defendant Service Corporation International (Defendant or SCI) on the Complaint of plaintiff Kesaia Bush (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. The new evidence submitted with the reply is untimely and not considered. (<i>Code of Civ. Proc. § 437c, subd. (b)(4).</i>) Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) Plaintiff’s evidentiary objections are OVERRULED as to nos. 1-5. The Court declines to rule on nos. 6-9. (<i>Code of Civ. Proc. § 437c, subd. (q).</i>) Defendant’s evidentiary objections to the declaration of Sandy T. Luu and Kesaia Bush are SUSTAINED as to nos. 1, 2, 38-43 based on relevance and OVERRULED as to nos. 3-42. The Court declines to rule on Defendant’s other “evidentiary” objections, which are procedurally improper. Written objections must go to specific evidence, not facts stated in the separate statement or response to separate statement. (<i>Cal. Rules of Court, rule 3.1354(b).</i>)

Plaintiff alleges SCI is jointly liable with defendant California Cemetery and Funeral Services, LLC (CCFS) as her employer. (Compl. ¶¶ 5, 7.) On July 2, 2026, the Court granted CCFS' motion for summary judgment, finding that Plaintiff failed to meet her shifted burden to show a triable issue of fact as to CCFS' liability. The Court grants SCI's motion for summary judgment for the same reasons it grants CCFS' motion. (ROA 244.) SCI's additional argument that it was not Plaintiff's employer is therefore moot.

1st and 2nd causes of action (discrimination and retaliation):

For summary judgment purposes, "[i]n an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors." (*Hicks v. KNTV Television, Inc.* (2008) 160 Cal.App.4th 994, 1003; *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926.)

"If the employer meets its initial burden in this manner, the plaintiff then has the burden to produce 'substantial evidence that the employer's stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination.'" (*Hicks v. KNTV Television, Inc.*, *supra*, 160 Cal.App.4th at 1003; see also *Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 44 [the plaintiff must provide "specific, substantial evidence of pretext"].)

Here, Defendant produced evidence that Plaintiff's employment was terminated because Plaintiff was on an extended absence without approved leave, *i.e.*, Plaintiff failed to submit medical documentation to support her request for pregnancy disability leave as required under Defendant's policies. (Defendant's Separate Statement of Undisputed Material Facts ("DSS") 7-22, 29.) Defendant met its burden showing a legitimate, nondiscriminatory reason for Plaintiff's termination.

The burden shifted to Plaintiff, but Plaintiff failed to produce sufficient evidence that Defendant's stated reason for termination was pretextual or Defendant otherwise acted with discriminatory animus.

Plaintiff's argues pretext is shown by Defendant's violation of 12 of its own policies. It is true "an employer's failure to follow its own policies and procedures" supports an inference of pretext. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 239.) Here, however, the evidence produced by Plaintiff fails to show Defendant violated its policies. Rather, the undisputed evidence and a review of the policies cited by Plaintiff show there was no obligation imposed on

Defendant, or the obligation was not triggered and/or excused by Plaintiff's own noncompliance. (Plaintiff's Additional Material Facts ("AMF") 74-85; see also DSS and Response to DSS 10-14, 25, 29; Declaration of Jeffrey J. Gordon ("Gordon Decl."), Ex. 3 at p. 391.)

Plaintiff next argues that Defendant's paperwork contains inconsistencies regarding Plaintiff's employment status during her leave of absence. A triable issue as to the employers' credibility may arise where the employer has given "fundamentally different justifications" for its action. (*Reeves v. MV Transp., Inc.* (2010) 186 Cal.App.4th 666, 677.) The evidence produced by Plaintiff fails to show the inconsistencies constitute "fundamentally different justifications" for the termination. Rather, they only reflect minor miscommunication between Defendant and third-party administrator and/or immaterial differences in wording. (Plaintiff's AMF 61-62, 88-89.)

Plaintiff argues a male employee was treated differently and more favorably because he was offered reinstatement. Pretext may be proven through "comparative evidence," *i.e.*, evidence that the employer treated similarly situated person in similar circumstances more favorably than it treated plaintiff. (*McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 804.) The undisputed evidence shows, however, that Plaintiff was provided the same offer as the male colleague – reinstatement with the requested documentation. (Gordon Decl., Ex. 2 at pp. 181-182; see also Bush Decl., ¶ 36.) Plaintiff failed to produce any evidence she ever provided medical document to support her leave, either before or after termination, or that she ever sought reinstatement. (DSS 13-26; Response to DSS 13; see also Gordon Decl., Ex. 2 at pp. 181-182, 200.) Plaintiff failed to show she was treated differently.

In sum, Plaintiff failed to meet her burden to provide "specific, substantial evidence of pretext" from which a reasonable trier of fact could conclude that the explanation offered by Defendant for Plaintiff's termination was not credible. (*Deschene v. Pinole Point Steel Co.*, *supra*, 76 Cal.App.4th at 44.) The motion is therefore **GRANTED** as these causes of action.

4th and 5th causes of action (reasonable accommodation and interactive process):

The FEHA imposes on the employer the obligation "to make reasonable accommodation for the known physical or mental disability" of an employee to enable him or her to perform a position's essential functions, unless doing so would produce undue hardship to the employer's operations. (*Gov. Code § 12940, subd. (m)*; *Cal. Code Regs., tit. 2, § 11068(a)*; *Fisher v. Sup. Ct. (Alpha Therapeutic Corp.)* (1986) 177 Cal.App.3d 779, 783.) In addition, FEHA requires the employer to engage in a "timely, good faith interactive process with the employee . . . to determine effective reasonable accommodations, if

any, in response to response to a request for reasonable accommodation by an employee . . . with a known physical or mental disability of known medical condition.” (*Gov. C. § 12940, subd. (n).*)

FEHA regulations provide that the employer has the obligation to initiate the interactive process 1) if an employee with a known disability or medical condition requests reasonable accommodation or 2) the employer otherwise becomes aware of the need for an accommodation through a third party or by observation. (*Cal. Code Regs., tit. 2, § 11069, subd. (b).*) A request for finite leave is a request for accommodation. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 377-378; *Cal. Code Regs., tit. 2, § 11068, subd. (c).*)

The employee has the obligation to “cooperate in good faith with the employer . . . including providing reasonable medical documentation where the disability or the need for accommodation is not obvious and is requested by the employer.” (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(5).*) “Reasonable medical documentation confirms the existence of the disability and the need for reasonable accommodation.” (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(1).*) If the medical documentation is insufficient, no reasonable accommodation is required. (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(6).*)

Defendant produced evidence Plaintiff requested accommodation for an alleged pregnancy disability by requesting a leave of absence, Defendant requested medical certification to support the leave request, but Plaintiff failed to provide any medical documentation despite repeated requests. (DSS 13-24.) Based on Plaintiff’s failure to cooperate, Defendant met its burden that it had no further obligation to engage in the interactive process or provide reasonable accommodation.

The burden shifts to Plaintiff to produce evidence showing a triable issue of fact. Plaintiff argues she was physically unable to engage in the interactive process, which cannot be held against her pursuant to *Cal. Code Regs., tit. 2, § 11069, subd. (d)(3)*. (AMF 56.) The evidence does not show, however, that Plaintiff lacked the mental or physical ability to obtain the doctor’s note. Indeed, Plaintiff claims she was unable to obtain the medical certification because her doctor refused to provide it despite Plaintiff’s repeated requests at her OB appointments. (Response to DSS 13, 15; Plaintiff’s AMF 51; see also Bush Decl. ¶ 21.) Thus, Plaintiff’s inability to obtain the doctor’s note was not caused by Plaintiff being physically unable to do so – it was because her doctor did not find her morning sickness to be severe enough to warrant accommodation.

Plaintiff next argues that Defendant had “at least five concrete mechanisms to resolve the certification obstacle” based on its own policies and Defendant “used none.” (Opposition, p. 12.) These

		arguments fail for the same reasons set forth above: Plaintiff failed to show Defendant violated any of its policies. To the extent Plaintiff argues her physical disability was so “obvious” that no documentation was necessary, Plaintiff failed to submit sufficient evidence of an obvious physical disability or the need to take an extended leave of absence. Plaintiff produced evidence her coworkers and supervisor may have observed Plaintiff suffer from morning sickness, but only a healthcare provider can determine whether she suffered from “severe morning sickness” requiring two months’ leave. (AMF 24-27; see also Plaintiff’s Compendium of Evidence, Ex. 2.) Notably, her own doctor did not believe her morning sickness was severe enough to warrant medical certification. (Response to DSS 13, 15; Plaintiff’s AMF 51; see also Bush Decl. ¶ 21.) If her own doctor did not find her condition to be “obvious” enough for an extended leave of absence, it would be unreasonable to expect her medically untrained coworkers and supervisors to find her condition “obvious” so as to excuse Plaintiff from a providing a doctor’s note. Plaintiff failed to meet her burden showing a triable issue of fact as to Defendant’s obligation to provide reasonable accommodation and/or further engage in the interactive process. The motion is therefore GRANTED as these causes of action. 3rd and 6th causes of action (failure to prevent and wrongful termination): These claims are derivative of Plaintiff’s other disability discrimination claims, and fail for the same reasons. (<i>Trujillo v North County Transit</i> (1998) 63 Cal.App.4th 286-88 [in general, there can be no failure to prevent discrimination if there are no successful discrimination claims; <i>City of Moorpark v. Sup. Ct. (Dillon)</i>(1998) 18 Cal.4th 1143, 1161[FEHA disability discrimination may form the basis of a common law claim for wrongful termination against public policy].) The motion is therefore GRANTED as these causes of action. <u>Punitive damages</u>: Based on the Court’s ruling on the motion as to all of Plaintiff’s claims, Defendant’s argument as to punitive damages is moot. <i>Counsel for Defendant shall give notice of this ruling.</i>
14.	Hammouri v. Ford Motor Company 23-1335621	(Continued))
15.	Pepper v. Lorkowski 25-1452672	(Moot)
16.	Carlton v. Ford Motor Company 24-1445099	Before the Court is the Motion for Summary Adjudication filed by Defendant Ford Motor Company (“Ford”) on 1/5/26. The Motion is DENIED .

The Opposition filed by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs") was untimely filed and untimely served. However, Plaintiffs have requested consideration under C.C.P. § 473(b) due to counsel's error, and Ford filed a reply. The Court has thus elected to consider the tardy Opposition.

Def. Ford moves for SAI on COA 6 (for fraudulent inducement – concealment) as asserted by Plaintiffs in their First Amended Complaint on the following issues:

ISSUE 1: Ps cannot establish that Ford had knowledge of a defect at the time of sale;

ISSUE 2: Ps cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale; and

ISSUE 3: Ps cannot establish an independent tort duty to except the fraudulent inducement – concealment COA from the economic loss rule ("ELR").

Ford first argues that Plaintiffs cannot establish that Ford had knowledge of a defect at the time of sale. But Plaintiffs have demonstrated a triable issue as to Ford's prior knowledge concerning the alleged transmission defect. (See UF 7; AF 9-26.) The Motion as to Issue 1 is therefore **DENIED**.

Ford also argues that Plaintiffs cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale. But a direct transactional relationship is not required in this context. (See *Gilead Tenofovir Cases* (2024) 98 Cal.App.5th 911, 949, rev. granted 5/1/24 ["a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects"], citing *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.) Plaintiffs have presented evidence to assert the claim. (UF 1; AF 1-8.) The Motion as to Issue 2 is therefore **DENIED**.

Finally, Ford argues that COA 6 fails based on the economic loss rule ("ELR"). *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (Id. at 41, fn. 12.) But *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 did do so. Under *Dhital*, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) After *Rattagan* was decided, review of *Dhital* was dismissed. As *Dhital* thus controls here, the Motion as to Issue 3 is **DENIED**.

To the extent directed to material evidence, Ford's Evidentiary Objections, filed as ROAs 125 and 126, are **OVERRULED**. (C.C.P. § 437c(q).)

		<i>Counsel for Ford is to give notice of this ruling.</i>
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